

Satya Prakash Singhal v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 5 March 2014 (order-sheet, 3.4.2012 to 5.3.2014) · WRIT - C No. 16378 of 2012 (with Restoration Application No. 340689 of 2013, Delay Application No. 228323 of 2013 and Substitution Application No. 228324 of 2013) · **Writ (restored after recall of the want-of-prosecution dismissal, legal heirs substituted) disposed of: respondent no.3 to consider reconnection/restoration or a fresh connection under Clause 4.39 r/w the second proviso to Section 135(1A) within six weeks, provided the petitioner clears all pending dues.**

Source file: WRIC(A)_16378_2012.pdf

HEADNOTE

Order-sheet culminating in a direction to consider reconnection after a permanent disconnection recorded on theft allegations. The petitioner's electricity connection had been disconnected on allegations of theft and its status recorded as 'PDC final' (permanent disconnection). His writ for a mandamus to restore/reconnect the supply had a protracted history: the respondent Dakshinanchal Vidyut Vitran Nigam Ltd.'s counsel repeatedly failed to obtain instructions (drawing a judicial observation and a last opportunity, with a copy sent to the Managing Director for compliance); the petition was dismissed for want of prosecution and later restored on sufficient grounds, and the legal heirs of the sole petitioner, who died during pendency, were substituted with delay condoned. Hearing the writ on merits on 5 March 2014, the Division Bench (Amreshwar Pratap Sahi and Vivek Kumar Birla, JJ.) declined to order automatic restoration on the strength of the discharge of the accused in the criminal case, and instead, on perusing Clause 4.39 of the U.P. Electricity Supply Code, 2005 read with the second proviso to Section 135(1A) of the Electricity Act, 2003, held that provisions for reconnection or fresh connection in the event of permanent disconnection are available. It disposed of the writ with a direction to respondent no.3 to consider the petitioner's request under those provisions - by reconnecting/restoring or by granting a fresh connection in accordance with law - within six weeks of production of a certified copy of the order, provided the petitioner has cleared off all pending dues.

FACTUAL SUMMARY

Satya Prakash Singhal filed Writ-C No.16378 of 2012 before the Allahabad High Court seeking a mandamus directing the authorities to consider the reconnection and restoration of his electricity connection, which had been disconnected on account of allegations of theft against him; the status of the connection was described as 'PDC final' in a document (Annexure 4, dated 31.10.2011). The matter was repeatedly adjourned because the counsel for the respondent Dakshinanchal Vidyut Vitran Nigam Ltd. (Rajesh Tripathi) could not obtain instructions; on 17 April 2012 the Court observed that invariably in cases where DVVNL is a party instructions are not forthcoming, granted a last opportunity, and ordered a copy of the order sent to the Managing Director for compliance. The petition was dismissed for want of prosecution on 6 November 2013 (the later recall order refers to that order as dated 6.11.2012) when no one appeared to press it. On the petitioner's restoration application the Division Bench (Amreshwar Pratap Sahi and Vivek Kumar Birla, JJ.) recalled the dismissal on being satisfied that sufficient grounds were made out and restored the writ; the sole petitioner having died during pendency, his legal heirs were substituted and the delay in substitution condoned. The writ was then heard on merits on 5 March 2014, after notice on new counsel for respondents 2 to 4 (Baleshwar Chaturvedi), the earlier counsel having refused notice. The petitioner urged that the criminal case had ended in the discharge of the accused, so the connection deserved restoration.

REUSABLE CONSTRUCTIONS

1. Even after a 'PDC final' (permanent disconnection) recorded on allegations of theft, provisions for reconnection or fresh connection are available under Clause 4.39 of the U.P. Electricity Supply Code, 2005 read with the second proviso to sub-section (1A) of Section 135 of the Electricity Act, 2003. **order of 5.3.2014**
2. On a writ for restoration after permanent disconnection the court may decline to order automatic reconnection and instead direct the competent authority to consider the request under the statutory reconnection / fresh-connection provisions, in accordance with law and within a fixed time, provided the consumer clears all pending dues. **order of 5.3.2014**
3. A discharge of the accused in the theft criminal case is a circumstance the consumer may urge for restoration, but the writ court routes the claim through the statutory reconnection provisions rather than ordering restoration on the discharge alone. **order of 5.3.2014**

4. A dismissal for want of prosecution may be recalled and the writ restored where sufficient grounds are shown, and the legal heirs of a sole petitioner who died during pendency may be substituted with the delay condoned, before the writ is heard on merits. **order of 5.3.2014**

HOLDING-UNITS

INTERPLAY · UP-2005::4.39

RATIO

After a permanent disconnection recorded on theft allegations, reconnection or fresh connection is available under Clause 4.39 r/w the second proviso to Section 135(1A); the authority is directed to consider the request, subject to clearance of dues

QUESTION

Where a consumer's connection has been permanently disconnected on allegations of theft, and the related criminal case has ended in the discharge of the accused, is a remedy of reconnection or fresh connection available, and what direction should issue on a writ seeking restoration?

HOLDING

Such provisions are available and the matter is remitted for consideration. The connection's status was recorded as 'PDC final'. The Court did not order automatic restoration on the strength of the discharge; on perusing Clause 4.39 of the U.P. Electricity Supply Code, 2005 read with the second proviso to sub-section (1A) of Section 135 of the Electricity Act, 2003, it found that provisions for reconnection or fresh connection in the event of permanent disconnection are available under those provisions. It therefore disposed of the writ with a direction to respondent no.3 to consider the petitioner's request in the light of those provisions - either by reconnecting and restoring the connection or by granting a fresh connection in accordance with law - within six weeks of production of a certified copy of the order, provided the petitioner has cleared off all dues pending against him. **order of 5.3.2014**

EVIDENCE “We have perused Clause 4.39 of the Electricity Supply Code 2005 read with the second proviso to sub-section 1(A) of Section 135 of the Electricity Act 2003 and we, accordingly, find that the provisions for reconnection or fresh connection in the event of permanent disconnection are available under the aforesaid provisions.” **order of 5.3.2014**

EVIDENCE “this writ petition is disposed of with a direction to the respondent no. 3 to consider the request of the petitioner in the light of the provisions that can be pressed into service for providing an electricity connection to the petitioner either by reconnecting and restoring the same or by granting fresh connection in accordance with law within a period of six weeks from the date of production of certified copy of this order produced before the said authority provided the petitioner has cleared off all the dues pending against him.” **order of 5.3.2014**

FLAG Order-sheet of 11 pages, dated orders from 3.4.2012 to the operative disposal of 5.3.2014, no printed page numbers; pins are order dates. The 5.3.2014 recall order refers to the want-of-prosecution dismissal as 'dated 6.11.2012', whereas that dismissal order is itself dated 6.11.2013 in the record - an apparent slip.

PRINCIPLE TAGS

reconnection-available-after-permanent-disconnection-clause-4.39 Clause 4.39 of the Supply Code r/w the second proviso to Section 135(1A) EA2003 makes reconnection or fresh connection available even after a permanent disconnection ('PDC final') recorded on theft allegations; the authority is directed to consider the request. Interplay of the Supply Code and the theft provision of the Act. Same Clause 4.39 reconnection route as SCJ-1138 and SCJ-1143. **order of 5.3.2014**

direction-to-consider-reconnection-subject-to-clearing-dues Rather than ordering automatic reconnection, the court directs the competent authority to consider reconnection / fresh connection in accordance with law within a fixed period, conditioned on the consumer clearing all pending dues. **order of 5.3.2014**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISCHARGE OF THE ACCUSED IN THE THEFT CRIMINAL CASE, BY ITSELF, ENTITLES THE CONSUMER TO RESTORATION OF THE CONNECTION

Not decided as a matter of entitlement; the Court directed the authority to consider the request under Clause 4.39 / the second proviso to Section 135(1A), subject to clearance of dues, rather than ordering automatic restoration on the discharge. **order of 5.3.2014**

NOT DECIDED — WHETHER THE DISCONNECTION WAS IN FACT FINAL ('PDC FINAL') OR STILL CAPABLE OF RESTORATION

Left to the authority; the Court noted the status was described as 'PDC final' in Annexure 4 (31.10.2011) and that, in the event final disconnection had not been made, restoration could be carried out. [order of 5.3.2014](#)

RELATED CASES — SEE ALSO

SCJ-1138 — Consumer seeking reconnection relegated to Clause 4.39 of the Supply Code, the writ disposed of with a direction to the Executive Engineer to consider the reconnection application - the same clause and the same disposal structure as here.

SCJ-1143 — Theft alleged and an FIR lodged; a writ seeking a direction to decide a reconnection/restoration application was disposed of without merits, directing the authority to decide - the closest theft-context analogue to this reconnection direction.

SCJ-085 — Disconnection dispute in which the occupant was left to apply for restoration/fresh connection - the fresh-connection alternative also offered here where permanent disconnection has occurred.

SCJ-1056 — Reconnection allowed only on a part-deposit while objections were decided - a parallel to conditioning restoration here on the petitioner first clearing all pending dues.

SCJ-1563 · Satya Prakash Singhal v. State of U.P. & Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.